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THE JAPANESE CHAMBER OF COMMERCE AND INDUSTRY IN VIETNAM

SOCIALIST REPUBLIC OF VIETNAM

Independence – Freedom - Happiness

No. 23/2018JCCI

Hanoi, Nov 23rd 2018

Re: Concerns on application dossier to amend enterprise registration and investment registration where members fail to contribute capital in full

Respectfully to: Ministry of Planning and Investment

First of all, the Japanese Chamber of Commerce and Industry in Vietnam ("**JCCI**") would like to express our sincere gratitude to the Ministry of Planning and Investment for your proactive and effective support in the 7th phase of Vietnam-Japan Joint Initiative ("**VJJI-Phase7**").

After researching and comparing the experience of our members in Vietnam, JCCI hereby reports that some business registration offices and investment registration agencies have inconsistent application of the laws on dossier to amend the enterprise registration and investment registration in case of decrease in charter capital and investment capital due to failure of members to contribute the full charter capital as undertaken within the prescribed time limit (i.e., there are instances when it is even required to submit separate decisions of members failing to perform their capital contribution obligation). This practice results in difficulties for enterprises if such members failing to comply with their capital contribution obligation do not have the goodwill to cooperate. Furthermore, it might cause the unfair situation wherein the enterprise is unduly burdened to pay the penalty due to failure of members to perform their capital contribution obligation. Therefore, we request for the following written guidelines from Your Excellency to facilitate the legal compliance of enterprises:

Pursuant to Article 48.2 and Article 48.3 of the Law on Enterprises, members shall fully contribute the charter capital they have undertaken to contribute upon enterprise registration within 90 days from the issuance date of the Enterprise Registration Certificate. Within such period,

members shall have the rights and obligations corresponding to their ratio of capital contribution as undertaken to be paid. If members fail to contribute any or fail to contribute in full the amount of capital as undertaken upon the expiry of the 90-day period, it shall be dealt with as follows: (i) members failing to contribute capital as undertaken shall automatically cease to be a member of the Company, and (ii) the member failing to pay in full its share of capital contribution as undertaken shall have the rights corresponding to the share of capital contribution already paid. Where members fail to contribute any or fail to contribute in full the undertaken capital, the Company shall register for the change in charter capital and capital contribution ratios of members equal to contributed capital within 60 days from the last day on which the share of capital contribution is required to be fully paid as prescribed under Article 48.2 of the Law on Enterprises.

In addition, failure of members to contribute any or failure to contribute the capital in full shall result in change in the investment capital of the project under the Investment Registration Certificate. Accordingly, the enterprise shall also need to fulfill procedures to register the amendment of the Investment Registration Certificate.

Concerning the dossier for the change of enterprise registration

To amend the Enterprise Registration Certificate, pursuant to Article 44.2 of Decree 78/2015/ND-CP dated 14 September 2015 of the Government about enterprise registration, the enterprise shall submit the decision and valid copies of the meeting minutes of the Members' Council attached with the notification on the change of enterprise registration.

Concerning the dossier for the change of investment registration

To amend the Investment Registration Certificate, pursuant to Article 33 of Decree 118/2015/ND-CP dated 12 November 2015 of the Government providing detailed regulations and guidelines for implementation of the Law on Investment, the Company shall submit, among other documents, the decision of investors on amendment of investment capital of the project.

THE JAPANESE CHAMBER OF COMMERCE & INDUSTRY

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Request for confirmation

As the current laws do not have detailed guidelines on the form of decision and meeting minutes of the Members' Council and decision of investor in the aforementioned cases, we wish to have our understanding confirmed as follows:

1. If there is a member failing to contribute the full capital within the prescribed period, the decision and meeting minutes of the Members' Council are required, however, the voting ratio shall be calculated based on the total of the actually paid capital at that time and the non-contributing member shall not have the right to vote on such member's unpaid capital; and
2. Separate decisions of members failing to perform in full their capital contribution obligation in relation to aforementioned issues shall not be required in dossiers to amend the Enterprise Registration Certificate and the Investment Registration Certificate.

We are honored to express our appreciation to Your Excellency and respectfully hope that Your Excellency and the Ministry of Planning and Investment would continue supporting us.

Recipients:
- As above;
- Embassy of Japan in Vietnam;
- The Japanese Chamber of Commerce and Industry in Ho Chi Minh City;
- The Japanese Chamber of Commerce and Industry in Danang;
- Save JCCI Office.

THE JAPANESE CHAMBER OF

COMMERCE AND INDUSTRY IN VIETNAM

Chairman

Koji ITO